

Federal Drug Strategy 2026

What it actually says about kratom

A line-by-line read of the new National Drug Control Strategy — separating the threats from the opportunities, with concrete action items for the industry.

Source	Prepared by	For	Read time
ONDCP National Drug Control Strategy 2026 (white paper, May 2026, 195 pp.)	iKratom Policy Desk	Industry leaders · Vendors · Advocacy orgs · Medical professionals	8 minutes

Executive summary

The headline is more nuanced than the press cycle suggests.

The federal posture is now

locked-in on 7-OH-enriched products

— concentrates, semi-synthetics, and adulterated SKUs are the enforcement target, with Schedule I classification the official direction.

Natural-leaf kratom is not named for prohibition

in the document. The Strategy distinguishes 7-OH (called "a potent opioid") from the natural plant. That distinction is the most important thing in this briefing.

The window to position legitimate natural-leaf as the regulated alternative is open — but won't stay open if the industry's response is to defend every SKU currently on shelves.

Three things to know in 30 seconds

1. **Schedule I for 7-OH is now federal policy direction**, not a question. HHS made the formal recommendation in July 2025; the Strategy treats it as a given.
2. **FDA enforcement letters are doubling**. The document sets a measurable target: 9 (2024 baseline) → 13 (2026) → 18 (2029) warning letters per year for "Delta-8 THC, Kratom/7-OH, and other opioids."
3. **Smoke-shop and gas-station retail is the named enforcement priority**. If your distribution channel looks like that to a regulator, you'll be on a list.

What the Strategy commits the federal government to

1

Continue FDA warning-letter program against 7-OH retailers

Cites the July 2025 round that hit 7 companies. Focus is on *concentrated 7-OH SKUs*: tablets, gummies, drink mixes, and shots. Letters target both manufacturers and online/retail distributors.

2

Push 7-OH onto Schedule I of the Controlled Substances Act

HHS made the formal scheduling recommendation in July 2025. The Strategy treats this as the policy direction, not an open question. Scheduling has not yet been finalized by DEA — the timeline is the only uncertainty.

3

Quantified enforcement growth target

FDA warning letters in this category — Delta-8 THC, Kratom/7-OH, and "other opioids" — are explicitly targeted to grow:

2024 baseline		9 letters
2026 target		13 letters
2029 target		18 letters

Roughly doubling enforcement intensity over five years.

4

Smoke-shop and gas-station retail is the named enforcement priority

The Strategy calls out vape shops, smoke shops, and gas-station retailers as primary targets when they sell substances "outside regulatory frameworks." 7-OH is named alongside hemp-derived cannabinoids, illicit psychedelics, and Amanita-muscaria mushroom products.

5

Naloxone access expansion includes kratom-7-OH overdoses

Kratom with high 7-OH levels is grouped with fentanyl and nitazenes as scenarios where naloxone availability is justified. Cites 2024 CDC SUDORS data: 995 overdose deaths with kratom or mitragynine detected in toxicology.

Decoded language — what it says vs. what it means

What the Strategy says	What it actually means
"Kratom with high 7-hydroxymitragynine (7-OH) content"	Specific framing. Federal targeting is on enriched products, not the plant. The natural alkaloid profile is implicitly NOT the target.
"7-OH is a potent opioid found naturally in trace amounts in kratom"	Important concession: the document explicitly acknowledges 7-OH is naturally present at trace levels. That distinguishes natural leaf (acceptable) from concentrated/synthetic 7-OH (the target).
"Domestic production exploiting legal and regulatory loopholes"	Code for unregulated retailers and producers operating without state KCPA-style frameworks. Industry players in KCPA states have a much stronger position.
"995 overdose deaths with kratom or mitragynine detected"	Note the framing: <i>detected in toxicology ≠ caused by kratom</i> . This is a number that polydrug presence inflates. The industry can push back on this conflation.
"Smoke shops, gas stations, and corner stores"	The retail-channel framing the industry has to escape. Trusted retailer / pharmacy / specialty-shop positioning is the answer.
"Vigilant, agile early warning system"	Real-time intelligence sharing between FDA, DEA, CDC, ONDCP. Expect coordinated action, not isolated agency moves.

Strategic implications — five takeaways

CEDE

Stop defending 7-OH-enriched product categories

The federal stance is locked in. Continuing to advocate for 7-OH concentrates is now an own-goal — it ties the legitimate industry's reputation to a category that's been definitively flagged for prohibition. Cede the ground; defend the leaf.

DEFEND

Codify the natural-leaf distinction at the state level

The federal silence on natural leaf is the gap that has to be filled before federal action evolves. KCPA-style state laws that explicitly preserve natural-leaf access — while regulating 7-OH — are the bulwark. Push them in every state where they don't exist.

PIVOT

Vendors selling enhanced kratom should expect a 12–24 month enforcement window

If the FDA target trajectory holds, your SKU is on the list. Pivot product mix now — not at the warning letter. The brands that survive the next two years will be the ones that pre-empt this transition.

REPOSITION

Escape the gas-station archetype

"Smoke shop" framing made it into the federal document. The legitimate industry needs to actively distance itself: pharmacy distribution, specialty-shop verification, vendor-grade certifications, third-party lab testing as a public-facing standard, not a marketing line.

STORYTELL

Counter the sympathetic-victim narrative — at federal scale

The Strategy uses one named victim (Jordan McKibban) to anchor its argument. The advocacy community has thousands of stories of kratom-replaced-opioids, kratom-saved-marriages, kratom-restored-lives. We don't surface them at federal scale. The industry's most underused asset is the user testimony pipeline.

What the Strategy does NOT say — pushback opportunities

The document is bounded. Every advocacy talking point should anchor on what's *missing* from it as much as what's in it.

- **No proposal to ban natural-leaf kratom.** Not now, not in five years.
- **No proposal to schedule mitragynine itself.** Only its synthetic-enriched derivative.
- **No federal preemption of state KCPA laws.** States retain authority to define legitimate kratom commerce.
- **No specific timeline for the 7-OH Schedule I action.** HHS recommendation stage; DEA hasn't finalized.
- **No criminalization of personal possession or use.** The document targets sellers and distributors, not consumers.
- **No restriction on imports of natural-leaf raw material.** Supply chain not in scope.

Industry talking points cheat sheet

For interviews, public statements, and conversations with policymakers. Use these in writing and on camera.

"Are you concerned the federal government is moving against kratom?"

"The federal Strategy is targeting 7-hydroxymitragynine — a synthetic concentrate that the legitimate industry has been calling out as a problem for years. The document explicitly distinguishes 7-OH from natural-leaf kratom. We agree with that distinction. We just want it codified in law before bad actors blur it."

"What about the 995 overdose deaths in 2024?"

"That number is from toxicology reports where kratom or mitragynine was detected — not where it was the cause of death. The vast majority of those cases involve fentanyl, alcohol, or other substances. Conflating presence with causation is exactly the kind of policy error this industry needs to push back on with data."

"Why should anyone trust the kratom industry to self-regulate?"

"We don't need self-regulation — we need state-level laws that distinguish legitimate kratom commerce from synthetic-enriched derivatives. The Kratom Consumer Protection Act framework already does that. Eight states have passed it. We support its expansion to all fifty."

"What's your response to the FDA warning letters?"

"The FDA is right to act on 7-OH-enriched products marketed without disclosure. Those letters target a specific category that the responsible industry has already moved past. The companies receiving them are not representative of the broader kratom marketplace — and we'd argue they shouldn't be considered part of it."

Action items — for industry leaders, by next quarter

- ☐ **Audit your product mix.** Any SKU with concentrated 7-OH, isolated 7-OH, or marketing language that emphasizes potency should be on the discontinue list within 12 months.
- ☐ **Publish a third-party COA program.** Every batch lab-tested, every result publicly accessible. The transparency that distinguishes you from the gas-station archetype.
- ☐ **Join — or fund — a state KCPA campaign.** Eight states down. Forty-two to go. Pick one without coverage and contribute to legislative drafting, lobbying, or grassroots support.
- ☐ **Train your staff on the Strategy's language.** Every retail employee should know the natural-leaf-vs-7-OH distinction. Every customer-facing email should use the right vocabulary.
- ☐ **Contribute customer testimonials to advocacy.** If your customers have stories of kratom-replaced-opioids, get permission, record them, and share them with platforms like iKratom that aggregate at federal-policy-maker scale.
- ☐ **Diversify retail channels.** Pharmacy, specialty store, vetted online — anything that escapes the smoke-shop archetype.
- ☐ **Track every state and federal kratom bill in your jurisdictions.** The legislative cycle moves faster than industry reaction time. Use platforms like iKratom that surface bill journeys + amendment trajectories so you can advocate proactively, not reactively.

How to read the Strategy yourself

The full National Drug Control Strategy 2026 is a public document, 195 pages, available at:

<https://www.whitehouse.gov/wp-content/uploads/2026/05/National-Drug-Control-Strategy-2026-1.pdf>

Kratom is referenced in 9 distinct passages. Search the PDF for: kratom , 7-OH , 7-hydroxymitragynine , mitragynine , novel substance .

Key page anchors (approximate):

- Page 14: opening framing, kratom grouped with tianeptine and Amanita
- Page 17: domestic production / regulatory loopholes
- Page 33–34: enforcement priorities for smoke-shop retail
- Page 34: "Kratom Victim" sidebar — Jordan McKibban narrative
- Page 62: naloxone expansion + 7-OH overdose framing
- Page 98: Measure 3.3.2 — quantified enforcement letter target
- Page 173: smoke-shop retail risk landscape

About this briefing

This briefing was prepared by the iKratom Policy Desk — the analytical arm of the iKratom advocacy platform. iKratom tracks every state and federal kratom bill, surfaces amendment trajectories, and equips advocates with one-click communication tools to their elected representatives. We are nonpartisan and independent of any industry organization (AKA, GKC, BAE, MAC).

For platform access, advocacy tools, or to contribute customer testimonials at policymaker scale: <https://www.ikratom.org>

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